

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOHN AYALA,

Plaintiff,

against

THE CITY OF NEW YORK, and POLICE OFFICER
ANTHONY SIDERATOS,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
Place of Occurrence.

This occurrence took place at:
Nassau Street and Duffield
Street, Brooklyn, NY 11201

County of Kings

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 22, 2021


JUSTIN D. BRANDEL

THE LAW OFFICES OF JUSTIN D. BRANDEL,
PLLC

Attorneys for Plaintiff(s)

JOHN AYALA

274 Madison Avenue, Suite 402

New York, New York 10016

(646) 522-8052

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
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Index No.:

**VERIFIED
COMPLAINT**

Plaintiff, by his attorneys, **THE LAW OFFICES OF JUSTIN D. BRANDEL, PLLC**,
complaining of the Defendants, respectfully alleges, upon information and belief:

1. That at the time of the commencement of this action, Plaintiff **JOHN AYALA** resided in the County of New York, City and State of New York.
2. That the cause of action alleged herein arose in the County of Kings, City and State of New York.
3. That at all of the times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That at all the times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction.

5. That at all the times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, maintained, managed, controlled and operated a Police Department within its boundaries and jurisdiction, and which said Police Department employed the defendant, **POLICE OFFICER ANTHONY SIDERATOS**, bearing Shield No. 14587.
6. That at all of the said times and places hereinafter mentioned, the defendant, **POLICE OFFICER ANTHONY SIDERATOS**, was in the employ of the NEW YORK CITY POLICE DEPARTMENT.
7. That at all of the said times and places hereinafter mentioned, the defendants, **POLICE OFFICER ANTHONY SIDERATOS**, was acting within the scope of his employment with and under the color of authority of the NEW YORK CITY POLICE DEPARTMENT.
8. That heretofore and on the 16th day of January, 2020, the plaintiff was lawfully upon the intersection of Nassau Street and Duffield Street in the County of Kings, City and State of New York.
9. That at the aforesaid time and place, the plaintiff was caused to be detained by officers of the New York City Police Department, including, but not limited to Defendant **POLICE OFFICER ANTHONY SIDERATOS**.
10. That at the aforesaid time and place, the plaintiff was falsely, unjustly and without cause, arrested by said officer, including, but not limited to, **POLICE OFFICER ANTHONY SIDERATOS**.
11. That the aforesaid unlawful arrest and detention, continued thereafter at the 84th Precinct Station House located at 301 Gold Street, in the County of Kings, City and State of New York.

12. That at all the said times, the aforesaid police officer, including, but not limited to, defendant **POLICE OFFICER ANTHONY SIDERATOS**, who detained, and who falsely, unjustly and without cause, arrested this plaintiff was an agent, servant and/or employee of the defendant, **THE CITY OF NEW YORK**.
13. That at all the said times, the aforesaid police officer, including, but not limited to defendant, **POLICE OFFICER ANTHONY SIDERATOS**, who detained, and who falsely, unjustly and without cause, arrested this plaintiff this plaintiff, was on duty and acting within the course and scope of his employment.
14. That at all the said times, the afore described detainment and false arrest of this plaintiff by an officer of the New York City Police Department, including, but not limited to, defendant, **POLICE OFFICER ANTHONY SIDERATOS**, was without just cause, probable cause or provocation.
15. That as a result of the foregoing, the defendants, their agents, servants and/or employees violated plaintiff's civil rights.
16. That as a result of the foregoing, the defendants, their agents, servants and/or employees violated plaintiff's New York State Constitutional rights.
17. That as a result of the foregoing, the defendants, their agents, servants and/or employees violated plaintiff's federal rights under the Constitution of the United States of America.
18. That as a result of the foregoing, the defendants, their agents, servants and/or employees violated 42 U.S.C. § 1983, among other statutes.
19. That on or about the 13th day of July the charges made by the defendant against the plaintiff were dismissed.

20. That the foregoing occurrence was caused wholly, solely or in part by reasons of the carelessness and negligence of the defendants, **THE CITY OF NEW YORK**, and **POLICE OFFICER ANTHONY SIDERATOS**, their agents, servants and/or employees in and about the operation, maintenance, management and control its Police Department and members thereof; in giving and making false declarations; in that these defendants, their agents, servants and/or employees failed to properly train, supervise and control the actions and activities of the police officers who wrongfully detained, and who falsely, unjustly and without cause, arrested the plaintiff; in that these defendants, their agents, servants and/or employees allowed, suffered, caused and permitted said officers to be, exist and remain as police officers of the New York City Police Department despite due knowledge and notice of their propensities to act without cause; in that these defendants, their agents, servants and/or employees negligently trained, hired and retained said police officers to act on its behalf; in that said police officers wrongfully detained, and falsely, unjustly and without cause, arrested the plaintiff during the course and scope of their employment as police officers for the New York City Police Department acting under color of law; in that these defendants, their agents, servants and/or employees were otherwise careless and negligent in utter disregard of the rights, safety and well-being of this plaintiff and other persons similarly situated.
21. That on January 16, 2020 and thereafter, the defendants committed misuse of legal procedure against and malicious prosecution of Plaintiff in that Defendants did not have probable cause or reasonable basis to believe that plaintiff was guilty of two counts of PL 220.03 – Criminal Possession of a Controlled Substance in the Seventh Degree and thereby initiated and continued prosecution with malice and ill-will.

22. That on or about the 13th day of July, the charges made by Defendants against Plaintiff were dismissed.
23. As a result of the foregoing, plaintiff sustained damages in the amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, and this court does have jurisdiction of this matter.
24. That this plaintiff did not contribute to the happening of this occurrence nor to the injuries sustained by him by any act or omission on his part.
25. That solely by virtue of the foregoing, this plaintiff was subjected to great indignities, embarrassment, mental anguish, and was held up to scorn, shame, ridicule and embarrassment and was tormented, abused and humiliated in person and character; he was psychologically and physically injured, and wounded; he sustained a severe shock to his nervous system and suffered intense pain and mental anguish; he was confined in and about his bed and home for a considerable period of time and was incapacitated from attending to his usual vocation; he was obliged to expend diverse sums of money and/or incur obligation for medical attention, care, treatment and supplies in an endeavor to cure or lessen the effects of his afore described injuries; the plaintiff was in other respects injured, all to the extent of a sum of damages which exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.
26. That on November 12, 2020 and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiff's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30)

days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

27. That on February 1, 2021, pursuant to General Municipal Law 50(h), a hearing was held virtually.
28. That the plaintiff has presented, served and filed his Notice of Claim and Intention to Sue thereon, as aforesaid, within 90 days after the date of the occurrence herein.
29. That this action was commenced within one year and 90 days since the happening of this accident and occurrence.
30. That the plaintiff has, prior to the commencement of this action, complied with all of the provisions of law in such cases made and provided.
31. That the Executive Orders of the Governor of the State of New York, tolling the time in which to present Notices of Claim, make Plaintiff's filing timely.
32. That this action falls within one or more of the exceptions set forth in CPLR §1602.

WHEREFORE, the plaintiff demands judgment against the defendants in a sum of damages in excess of the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of the within matter, together with costs and disbursements of this action.

Dated: New York, New York
February 22, 2021



JUSTIN D. BRANDEL
THE LAW OFFICES OF JUSTIN D. BRANDEL,
PLLC
Attorneys for Plaintiff(s)
JOHN AYALA
274 Madison Avenue, Suite 402
New York, New York 10016
(646) 522-8052

ATTORNEY'S VERIFICATION

JUSTIN D. BRANDEL, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICES OF JUSTIN D. BRANDEL, PLLC, attorneys of record for Plaintiff **JOHN AYALA**. I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) is/are not presently in the county wherein the attorneys for the plaintiff(s) maintain their offices.

DATED: New York, New York
February 22, 2021



JUSTIN D. BRANDEL

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SUMMONS AND VERIFIED COMPLAINT

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THE LAW OFFICES OF JUSTIN D. BRANDEL, PLLC
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